

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFair USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

JOINT STATUS REPORT

Pursuant to the Initial Order of December 16, 2022, Complainant SEAFair USA LLC (“SeaFair” or “Complainant”) and Respondents STERLING CONTAINER LINE LIMITED and ATLANTIC FORWARDING LTD. (together with Sterling, the “Respondents”, and jointly with SeaFair, the “Parties”), hereby submit their joint status report.

I. Consumer Affairs and Dispute Resolution Services

The Parties have not consulted with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (“CADRS”) as to whether the matter may be resolved through mediation. On January 5, 2023, counsel for Respondents emailed the Federal Maritime Commission (Inquiries@fmc.gov and complaints@fmc.gov) and requested preliminary guidance from CADRS as to its potential availability for scheduling a preliminary conference as required under the Initial Order. To date, no response has been received from CADRS or the Commission. However, the Parties conferred on January 10, 2023 to discuss third-party mediation as a potential option for the instant dispute, and the Parties are weighing whether mediation with CADRS or an alternative third-party mediator would be helpful in resolving this dispute.

II. Initial Disclosures

The Parties have agreed to exchange and serve Initial Disclosures by January 23, 2023.

III. Proposed Scheduling Order

The Parties propose the following Scheduling Order:

- January 23, 2023: Parties exchange Initial Disclosures.
- February 17, 2023: The Parties serve initial discovery requests.
- March 17, 2023: The Parties serve responses to initial discovery requests.
- March 30, 2023 – May 24, 2023: Depositions to be completed.
 - The Parties will take no more than five (5) depositions per side.
- April 25, 2023: Last day to serve discovery requests.
- May 25, 2023: Close of discovery.

Date: January 17, 2023

Respectfully Submitted,

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Counsel for Complainant

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 17th day of January 2023, the foregoing Joint Status Report was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
The Honorable Erin M. Wirth
Chief Administrative Law Judge
Presiding Administrative Law Judge
judges@fmc.gov

/s/ Ashley K. Kelley_____
Ashley K. Kelley, Esq.